



Our ref: IM-72581

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17 June 2025

Dear Interested Party,

Re: ACCC seeking your views: merger between Hino Motors Limited and Mitsubishi Fuso Truck and Bus Corporation

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed merger between Hino Motors Limited (**Hino**) and Mitsubishi Fuso Truck and Bus Corporation (**Mitsubishi Fuso**) (the **Proposed Acquisition**).

Hino and Mitsubishi Fuso each manufacture a wide range of trucks and buses primarily in Japan. Vehicles are sold to customers in Australia through a network of dealerships. In Australia, the parties overlap in the supply of light commercial vehicles (**LCV**), medium duty trucks (**MDT**) and heavy-duty trucks (**HDT**). There is also potential overlap in the supply of buses in Australia. Further details about Hino, Mitsubishi Fuso, the Proposed Acquisition and the overlap between the merger parties is provided at **Attachment A**.

The ACCC's investigation is focused on the impact that the Proposed Acquisition would have on competition. In particular, we are seeking your views on:

- the extent to which Hino and Mitsubishi Fuso compete with each other in Australia
- the likely impact on prices and service quality in the supply of LCV, MDT and HDT in Australia
- the competitive alternative suppliers of LCV, MDT and HDT in Australia and potential new entrants.

Further issues you may wish to address are provided at **Attachment B**.

This matter is public, and you can forward this letter to anybody who may be interested.

The legal test the ACCC applies when assessing mergers and acquisitions is in section 50 of the *Competition and Consumer Act 2010*. Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by 5pm on 27 June 2025 via email to mergers@accc.gov.au with the title: *Submission re: Hino – Mitsubishi Fuso*. If you require more time to respond, please let us know.

If you would like to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC will not publish submissions regarding the proposed acquisition. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the CCA. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, if the information provided to the ACCC is of a confidential nature, please indicate as such. Our Informal Merger Review Process Guidelines contain more information on confidentiality

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Morag Bond', is positioned below the 'Yours sincerely' text.

Morag Bond

General Manager

Merger Investigations

Attachment A

Mitsubishi Fuso

Mitsubishi Fuso is a manufacturer of trucks and buses, incorporated and headquartered in Japan. It is a private company that is majority-owned by Daimler Truck AG (**DTAG**).

Mitsubishi Fuso manufactures a wide range of trucks and buses under its 'Fuso' brand. Mitsubishi Fuso primarily manufactures and assembles its vehicles and spare parts in Japan. It does not have any manufacturing or assembly facilities in Australia.

These vehicles are imported into and distributed in Australia by Daimler Truck Australia Pacific Pty Ltd (**DTAuP**) (which is wholly-owned by DTAG) and sold to customers through a network of over 40 independent dealerships.

Hino Motors Limited

Hino is also a manufacturer of trucks and buses. It is a public company listed on the Tokyo Stock Exchange Prime Market and the Nagoya Stock Exchange Premier Market. Its majority shareholder is the Toyota Motor Corporation (**Toyota**), and the remainder of its shares are held in free float.

Hino manufactures a wide range of trucks and buses, primarily in its facilities located in Japan. It imports trucks (and associated spare parts) into Australia through a wholly owned subsidiary, Hino Motor Sales Australia Pty, Ltd (**HMSA**), and sells to customers through a network of over 60 independent dealerships.

Like Mitsubishi Fuso, Hino does not have any facilities to manufacture or assemble vehicles (or spare parts) in Australia.

The Proposed Acquisition

Toyota and DTAG have entered into agreements to combine all the shares and businesses of Mitsubishi Fuso and Hino under a new entity.

The newly formed company is expected to be listed on the Tokyo Stock Exchange with DTAG and Toyota each owning approximately 25% of the listed company.

Overlap in Australia

In Australia, Mitsubishi Fuso and Hino overlap in the supply of:

- light commercial vehicles (LCV)¹
 - Hino's *300 Series* and Mitsubishi Fuso's *Canter* and *eCanter*
- medium duty trucks (MDT)²

¹ LCV includes commercial vehicles with a gross vehicle weight between 3.5 and 8 tonnes.

² MDT includes commercial vehicles with a gross vehicle weight above 8 tonnes and a maximum loaded weight of less than 39 tonnes.

- Hino's *500 Series* and Mitsubishi Fuso's *Fighter* (and some versions of *Canter*)
- heavy duty trucks (HDT)³
 - Hino's *500 Series* and *700 Series* and Mitsubishi Fuso's *Fighter* and *Shogun*

In addition, Mitsubishi Fuso imports and sells buses in Australia (its *Rosa* model), and Hino manufactures and sells buses internationally and, until 2022/23, sold its *Poncho* model in Australia.

Consideration by overseas competition authorities

The Proposed Merger is conditional on regulatory approvals in over 40 jurisdictions in addition to Australia, including Japan, China, Germany, Spain and Singapore.

³ HDT includes all commercial vehicles with a gross vehicle weight above 8 tonnes and a maximum loaded weight above 39 tonnes.

Attachment B

1. To better understand your views, describe your business or organisation and your interest in the proposed acquisition, including any commercial relationship(s) with Hino or Mitsubishi Fuso.

Questions for customers

2. Identify the makes and models of trucks and buses that you purchase or operate in Australia.
3. For each make and model, identify suitable alternatives.
4. How closely do Hino and Mitsubishi Fuso compete to supply trucks and buses, and in particular LCV, MDT, HDT and buses in Australia? You may wish to comment on pricing, product quality and product range.
5. Which manufacturers/suppliers do you consider to be particularly important or effective competitors to Hino and Mitsubishi Fuso?
6. To what extent is competition between suppliers of trucks and buses driven by manufacturers, dealerships or both? You may wish to comment on how manufacturers and dealerships influence the makes and models sold, pricing, discounting, promotions and inclusions.
7. How do customers typically buy new trucks and buses? Do they approach dealerships, manufacturers/importers, vehicle brokers or use another method?

Questions for competitors

8. Identify the makes and models of trucks and buses that you sell in Australia that compete with the trucks and buses supplied by Mitsubishi Fuso and/or Hino.
9. Which other suppliers/brands compete with Hino and Mitsubishi Fuso in the supply of LCV, MDT, HDT and buses in Australia? How closely do these suppliers compete?
10. Are there any international suppliers/brands that do not currently supply LCV, MDT, HDT or buses in Australia that you consider likely to enter the Australian market in the next 5 years.
11. Are you aware of any recent examples of new entry? Please provide details.
12. Describe your brand's dealership network in Australia. How extensive is your dealership network? Are dealerships 'brand owned' or independent third parties? How long are dealerships appointed for? Are dealerships exclusive or are dealers permitted to sell multiple brands?

Questions for dealerships

13. What suppliers/brands do you have a dealership agreement with? Is your agreement exclusive? What is the length of your agreement? What costs are involved in switching to a new brand?
14. Explain the level of guidance and support you receive from the suppliers/brands that you supply at your dealership.
15. How closely do you compete with other dealerships, including dealerships that supply the same brands as you?